**THE STATE**

**Versus**

**SIBONGISENI MPOFU**

IN THE HIGH COURT OF ZIMBABWE
KABASA J with Assessors Mr J. Ndubiwa and Mr J. Zulu
HWANGE 2 AND 3 MARCH 2026

**Criminal trial**

*M. Munsaka*, for the state
*T. Sibanda*, for the accused

**KABASA J: -** The accused appeared before us on a charge of murder as defined in s47(1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23]. He pleaded not guilty.

The state's allegations are that on 17/5/2025 at Christine Ncube's homestead, Chief Mabhikwa in Lupane the accused called his brother, one Siyabonga Mpofu and told him that he had struck the now deceased on the head with an axe before setting her on fire. The brother and an uncle went to the now deceased's home and found her bleeding from the head and had burns all over her body. She was ferried to hospital where she succumbed to her injuries.

In his defence the accused explained that he went to the deceased's home after she called him and wanted to send him to the grinding mill. He told her he could not go on that day and the deceased reacted by telling him that, that is why he was suffering and would continue to suffer. He pulled out a log from the fire and feigned a blow at her. She lost balance, fell into the fire and he left.

To prove its case, the state produced the post-mortem report compiled by Dr Jekenya. The doctor noted the following marks of violence:-

> Septic deep burns of the head scalp, face, nostrils, orbital region, neck, chest wall mainly upper and anterior, both upper limbs, right lower limp popliteal region and severe eye damages.
>
> The cause of death was:-

a) anaemia and septicaemia

b) petrol burns multiple complications

c) assault

The evidence of four witnesses was admitted in terms of s314 of the Criminal Procedure and Evidence Act [Chapter 9:07]. This evidence established the fact that the now deceased had burns and in the hut where she was found were blood stains, paraffin drops on the floor and the smell of paraffin.

Evidence was led from two witnesses, the accused's brother and father. The gist of the evidence was that the brother went to the now deceased's home after receiving a call from the accused. The accused had told his brother to go and "take their aunt as he had killed her." The now deceased was their father's first wife. The accused then related to his brother why he had gone to the now deceased's home and how the deceased sustained the injuries which took her life. He had gone there to ask for cooking oil and after he got it he then struck her with an axe and poured some accelerant on her before setting her on fire.

The two witnesses' evidence corroborated each other as regards the reason accused had gone to the now deceased's home, the assault and setting her on fire. The now deceased also told the 2 witnesses what had happened to her.

The witnesses' evidence was straightforward and to the point. They only said what they saw and what the accused and now deceased said to them. They confined themselves to the bare minimum, an indication that they were only stating what happened and what was said and nothing more. They were credible witnesses whose evidence could be safely relied on.

The accused's selective memory destroyed whatever little credibility he had. He sought to in one breath claim some amnesia, that he could not recall telling his brother what the brother related to the court, but later sought to suggest that he never told him anything.

It became evident that his story about the now deceased calling him so she could send him to the grinding mill was a figment of his not so fertile imagination. We say so because if his actions were as a direct result of what he saw as provocative words uttered by the now deceased, that is exactly what he would have told his brother when he called the brother to tell him what he had done. He would have told his father the same story. After all he only had to explain what made him attack the now deceased. What was so difficult for him to simply state

that she had made him angry because of the words she had uttered? Why even mention that he struck her on the head if all he did was feign a blow and she lost balance and fell into the fire? Why even say he had doused her with an accelerant and set her on fire if all she did was fall after losing balance? He talked to his brother and father at a time when he had not started scheming and so what he said was a reflection of a mind that was not yet polluted by a desire to escape the consequences of his actions.

He was a poor witness who could not even tell a lie and stick to it. Not that it is easy to tell a lie, build on it and be able to sustain it.

Granted his story need not convince the court as to its truthfulness as he has no onus to prove his innocence but the court considers that story in light of the evidence led against him. So whatever explanation he gives is also juxtaposed to the evidence led against him. *In casu* not only was his story shown to be improbable but it was shown to be beyond doubt false (*R* v *Difford* 1937 AD 370, *S* v *Kurauone* HH 961-15).

The now deceased's statement to the two witnesses would have been inadmissible but for the fact that it met the requirements of a dying declaration. She made that statement regarding the cause or circumstances of the cause of her demise. She must have apprehended her death. As she cried out for help she asked to be taken to hospital. The words she uttered were spontaneous as she uttered them to those who came to her aid and it was at the very time the incident had occurred. It therefore cannot be said she had had time to think through what she wanted to say and processed it so that she said that which she wanted people to believe. She did not survive the attack. Death ensued and it need not have occurred there and then. The fact that she clung to life for about a month does not change the complexion of the matter. Her words were a dying declaration and so meet the exception to hearsay evidence.

In *S* v *Ndou* HB 176-18 MABHIKWA J dealt with the requirements of a dying declaration, and cited *S* v *Mukwambuwe* 2014 (2) ZLR 104 (H). The requirements as stated in s254(1) of the Criminal Procedure and Evidence Act [Chapter 9:07] are that: -

1. The person who made the statement must be dead at the time of the trial.

2. The trial must for the murder or culpable homicide of the dead person.

3. The statement must relate to the cause of the deceased's death.

4. At the time the statement is made the declarant must have been dangerously ill and have been without hope of recovering.

5. The witness must have been a competent witness.

(See also *S* v *Mutsure* S 62-21)

The now deceased was badly burnt as she cried asking to be taken to hospital. She did not leave the hospital alive and she told the witness who had caused those injuries which turned fatal. The post mortem report articulated the seriousness of the burns, a fact also stated by the witness who observed the burns before the deceased was ferried to hospital.

The now deceased's statement as to what had happened was supported by the accused himself when he told his brother what had happened. The smell of paraffin detected in that room by the attending police detail, including the drops of paraffin observed in that hut, speak to the accelerant used which the accused confirmed.

Why would anyone douse a human being with petrol, set them alight and then call someone else announcing that they had killed that person if not because they realised that their actions would lead to death and actually believed that such death had occurred.

Whether the accused actually intended to cause death or he realised the real possibility that his conduct may cause death but continued nonetheless does not make it any less a murder. (*S* v *Mapfoche* S 84-21).

There was no provocation and that is why the accused made no mention of that at the earliest opportunity he had to state what had happened. We therefore did not exercise our mind on that, just as we also decided not to exercise our mind on the witchcraft issue as the accused did not associate himself with that as the reason why he conducted himself in the manner he did. Not that belief in witchcraft would have availed him as a defence.

On the whole the deceased met her death at accused's hands. The cause of death is directly linked to the accused's conduct and there was no break in the chain of causation. He therefore cannot escape liability for the deceased's death.

Having ruled that he proffered no defence cognisable at law, he cannot escape conviction for murder.

We are therefore satisfied the state proved its case beyond a reasonable doubt and accordingly find him guilty as charged.

**Sentence**

You are a 20 year old first offender. At 20 you are still youthful and the courts treat such offenders with some measure of leniency. Youthfulness brings with it immaturity and at times thoughtlessness. (*S* v *Zaranyika & Ors* 1995 (1) ZLR 270 (H).

You are single and have no children. You will live with the stigma of being labelled a murderer for the rest of your life. The deceased was your father's first wife and so she was your mother, so her death is likely to haunt you for a long time to come.

In aggravation is the fact that the deceased had not provoked you. She did not deserve to die such a painful death. You poured an accelerant on her and set the body alight. You were probably trying to conceal what you had done.

The deceased was 72 years old and killing a person who is over 70 years is an aggravating factor in terms of the law. She had been gifted with long life which you snuffed out in such a cruel manner.

The courts have time without number urged society to respect the sanctity of life. The gift of life ought not to be taken away by another human being.

It is taboo in our culture for a child to assault their mother. She was as good as your mother. Cultural norms frown at children who abuse their parents, worse still kill them.

You did not render assistance to her after the assault but chose to flee from the scene.

Your father was affected psychologically by your conduct. He had been married to the deceased for 50 years. He expressed the grief he is still consumed by as a result of your actions. Your brother who testified cried as he gave his testimony, an indication of how this incident affected him and still affects him. The court had to adjourn to allow him time to compose himself.

The aggravating factors call for the presumptive 20-year sentence and we would have imposed 20 years but for your youthful age.

We will not approach sentence with a vengeful attitude (*S* v *Ndlovu* HB 14-96). In doing so we are not showing maudlin sympathy for you but just being humane and ensuring the sentence is just and fair (*S* v *Rabie* 1975 (4) SA 865 A).

For these reasons you are sentenced to 16 years imprisonment.

*National Prosecuting Authority*, state's legal practitioners
*Dube, Nkala and Company*, accused's legal practitioners